

26STCP00345 26STCP00345

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Case Number: 26STCP00345 Hearing Date: June 25, 2026 Dept: 833

Oceans 11 RV Park LLC, Case No. 26STCP00345

Hearing:

June 25, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 City

of Los Angeles, et. al. Judge: Joseph

Lipner

[Tentative] Order on Petition for Writ of

Mandate

INTRODUCTION

Petitioner Oceans 11 RV Park LLC

("Petitioner") filed this petition for writ of mandate alleging that the City of Los Angeles ("the "City") violated its ministerial duties to approve the North Hills Park, an RV Park. The lawsuit also alleges that the City violated California's Housing Accountability Act. Petitioner seeks a writ of mandate directing the City to exercise its ministerial duty to issue the requested permits for the RV park. Petitioner also seeks a writ under the Housing Accountability Act (the "HAA") directing the City to approve the RV park within 60 days.

The Court GRANTS the petition for writ of mandate as to the first two claims relating to LAMC §14.00.A(7). The Court DENIES the petition for writ of mandate as to the third claim relating to the Housing Accountability Act and the fourth claim for declaratory relief.

BACKGROUND

A.

The Property
and the Project

Petitioner owns property at 9849-9855 N. Lemona Avenue, Los Angeles, CA 91343. (AR 1513.) The Property is zoned RA-1, Suburban Zone. (Silver Decl., ¶ 15.)

On June 17, 2024, Petitioner applied to Department of Building and Safety (“DBS”) for a ministerial “Use of Land Permit For RV Park Mobile Home Park with ADA Parking / Public Benefit Project per LAMC §14.00.A.7 (Permit No. 24020-10000-01020). (AR 41-42.)

On September 10, 2024, the Planning Department confirmed the Project satisfied all performance standards. under LAMC §14.00.A.7. (Silver Decl., ¶ 17.) The approved plan set is attached to the Silver declaration. (Silver Decl., ¶ 62, Ex. A.) All City Departments, including the Department of Building and Safety, Los Angeles Fire Department and Bureau of Sanitation gave their approval for the project. (AR 1340-1341.)

On September 25, 2024, the City approved the Project as a qualified “RV Park Mobile Home Park” Public Benefit Project, designating the code classification of “Mobilehome Park” as the Project’s “Proposed Use,” and issued the Permit on September 25, 2024. (AR 41-42; 1406; Silver Decl., ¶¶ 8, 18.)

On October 21, 2024, the City issued an electrical permit for temporary power during construction and internet. (Silver Decl., ¶ 20.)

On December 9, 2024, California Department of Housing and Community Development (“HCD”) issued a permit allowing the development of the Project. (AR1480; Silver Decl., ¶ 19.)

Construction began in January 2025.

(Silver Decl., ¶ 23.)

On April 24, 2025, the City issued a plumbing permit to upgrade the water line, with a supplemental permit on May 15, 2025. (Silver Decl., ¶ 20.)

Between December 2024 and August 2025, HCD oversaw permitting and inspection of the work, conducting nine inspections. (Silver Decl., ¶ 24.) By early August 2025, the Project was fully built out. (Silver Decl. ¶¶ 23, 28.)

Oceans 11 expended over \$1.3 million constructing the park in reliance on the permit. (Silver Decl., ¶ 22.) Oceans 11 requested the final DBS inspection on August 7, 2025. (AR1392; Silver Decl. ¶ 29.)

B.

The

City's Actions

On August 6, 2025, the day before the permit was "expired," Councilmember Monica Rodriguez for Council District 7 together with Councilmember McOske adopted a motion directing City staff to draft an interim control ordinance ("ICO") to suspend the issuance of permits for RV parks under LAMC § 14.00(A)(7). (AR149, 232-241, 499, 504-507; see also AR140, 147.) The stated reason for the ICO was that RV parks posed a current and immediate threat to public health, safety, and welfare. (AR 261.)

On

August 8, 2025, Senior Inspector Jeffrey Duran told Petitioner that DBS intended to expire the Permit because work had allegedly not commenced within six months of permit issuance. (Silver Decl., ¶ 29.) This was not accurate as the City's own inspectors had observed and approved work on the Property and HCD had also conducted multiple inspections of completed work. (AR 1423; Silver Decl., ¶ 30.) DBS privately realized they were proceeding incorrectly by expiring the permit, but never admitted that error to Petitioner. (AR 1328-1329; Silver Decl., ¶ 34.)

DBS

records show Senior Inspector Rickey Jackson expired the Permit in the online DBS database on August 7, 2025, the same day Petitioner requested the final inspection. (Silver Decl., ¶ 31.)

After

learning that the permit had been deactivated, Oceans 11 called Inspector Jackson six times throughout August 2025 to discuss the issue and submitted a demand letter on August 13, 2025 requesting reactivation of the permit. (Silver Decl., ¶¶ 32-36.)

On August 13, 2025, Councilmember Rodriguez sent a letter to Petitioner, acknowledging that the City had approved the Project, but inferred the Project was properly halted because she had introduced the ICO motion. (Silver Decl., ¶ 33.) At the time though, no ICO had been adopted and no draft ordinance was even pending. (Silver Decl., ¶ 33.)

On August 23, 2025, DBS supervisor Allen Manalansan issued another Notice to Stop Construction and Notice of Intent to Revoke the Permit. (Silver Decl., ¶ 37.) DBS claimed that they had identified zoning code violations and had become aware that the Project had not obtained all required building permits. (Silver Decl., ¶ 40.) The claims in the Notice had never been previously discussed with Petitioner. (Silver Decl., ¶ 38.) Petitioner refuted each assertion in the Notice but the City did not respond. (Silver Decl., ¶ 41.)

In mid-September

2025, based on a request from the City, Petitioner applied for a supplemental permit to document the removal of the trash enclosure from the approved plans. (Silver Decl., ¶¶ 44-45.)

The City then used

that limited application to remove the approved “mobile home” park use from the project description without Petitioner’s consent. (Silver Decl., ¶¶ 47-48.) However, the City also refused to issue the permit, with an inspector telling Petitioner that he had been instructed not to reactivate the permit even though the application fully complied with all LAMC requirements. (Silver Decl., ¶¶ 50-52.)

DBS issued an extensive set of plan check comments as if the application was for a new project (and not just to document the removal of an inconsequential structure from the Project plans), and most of the comments did not even relate to the performance standards. (Silver Decl., ¶ 53.) Still, Petitioner attempted to engage with the comments to secure the supplemental permit. (Silver Decl., ¶ 54-56.)

After weeks of refusing to respond to Petitioner, DBS finally scheduled a plan check meeting on January 9, 2026, and took the position that it would cease processing the supplemental permit because, purportedly, the ICO prohibited it. (Silver Decl., ¶¶ 57-59.)

This petition followed.

LEGAL STANDARD

A.
Petition
for Traditional Writ of Mandate

The first and second causes of action are for writ of ordinary mandate. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where, as here, the claim is that an agency has failed to act as required by law." (*Id.* at 705.) "Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.)

Mandamus also

“will lie to correct abuses of discretion. In determining whether a public agency has abused its discretion, the court may not substitute its judgment for that of the agency, and if reasonable minds may disagree as to the wisdom of the agency's action, its determination must be upheld. A court must ask whether the public agency's action was arbitrary, capricious, or entirely lacking in evidentiary support, or whether the agency failed to follow the procedure and give the notices the law requires.” (County of Los Angeles v. City of Los Angeles (2013) 214 Cal.App.4th 643, 654.)

An agency is presumed to have regularly performed its official duties. (Evid. Code § 664.) Petitioner “bears the burden of proof in a mandate proceeding brought under Code of Civil Procedure section 1085.” (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1154.) “‘On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.’¿ Interpretation of a statute or regulation is a question of law subject to independent review.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.)

B.
Housing
Accountability Act

The third cause of action seeks to enforce the Housing Accountability Act (the “HAA”). Government Code section 65589.5(m)(1) of the HAA requires that, “[a]ny action brought to enforce the provisions of this section shall be brought pursuant to Section 1094.5 of the Code of Civil Procedure....” The court’s task “is therefore to determine whether the City ‘proceeded in the manner required by law,’ with a decision supported by the findings, and findings supported by the evidence; if not, the City abused its discretion.” (Cal. Renters Legal Advocacy and Education Fund v. City of San Mateo (2021) 68 Cal.App.5th 820, 837.) The City “bear[s] the burden of proof that its decision has conformed to all of the conditions specified in¿ Section 65589.5.” (§ 65589.6.)

DISCUSSION

A.

Judicial Notice

The Court GRANTS all requests for judicial notice.

B.

The City Has a Ministerial Duty to Process and Approve Petitioner's Applications

In

the first and second causes of action, Petitioner alleges that “[t]he City has a ministerial duty to process and approve Petitioner’s applications under LAMC § 14.00.A(7),” and that “[t]he City has failed to perform its ministerial duties by issuing an intent to revoke Petitioner’s Use of Land Permit, and imposing conditions that violate State law and the LAMC.” (Petition, ¶¶ 136-137.) In the first cause of action, “Petitioner seeks a Court order compelling the City to perform its ministerial duty to process and approve the applications, issue the corresponding permits, conduct the final inspections, and issue the certificate of occupancy.” (Petition, ¶ 142.)

Notably,

other than its argument about exhaustion of remedies, the City does not make any substantive argument supporting its conduct or asserting that an ordinary writ of mandate should not issue. (See Opp. at 14-18.) While it has submitted declarations detailing the process and the issues raised by the City, the City fails to make any legal argument defending those actions. (DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) The Court discusses the issue of exhaustion of remedies in the following section.

The

background law concerning Petitioner’s right to a writ of mandate is well-established. The issuance of a building permit is generally a ministerial act. (Friends of Juana Briones House v. City of Palo Alto (2010) 190 Cal. App. 4th 286, 302.) The ministerial nature of the City’s duties is shown by the municipal code: “When the department determines that the information on the application and plans is

in conformance with this Code and other relevant codes and ordinances, the department shall issue a permit upon receipt of the total fees.” (LAMC § 91.106.4.1.) As work progresses under the permit, DBS “shall approve that portion of the work inspected or notify the responsible person if the work fails to comply with the law.” (LAMC § 91.108.5.) Upon completion of the final inspection, “the Superintendent of Building shall issue a [CofO], without charge, to the owner of the building.” (LAMC § 91.109.3.) Generally, courts construe the word “shall” as mandatory. (Tarrant Bell Prop., LLC v. Sup. Ct. (2011) 51 Cal. 4th 538, 542.)

Here,

DBS, Planning, Fire, and Sanitation reviewed the Project and cleared it in September 2024. (AR 35-36.) The Planning Department confirmed that the Project complied with all twelve performance standards under LAMC §14.00.A.7 and signed off on the Project. (Silver Decl., ¶ 17.) The City issued the original permit on September 25, 2024. (AR41-42.)

This

should have been the end of the story. But in August 2025, DBS decided to “expire the Permit because work had allegedly not commenced within six months of permit issuance.” (Silver Decl., ¶¶ 29-30.) DBS made this decision even though LAMC § 98.0602 is clear – permits expire twelve months after issuance unless work commences under a permit, not six.

DBS

also issued a Notice of Intent to Revoke the Permit, which included a list of claims that have no legal basis. DBS complained about “address approval” but address approval

is not a performance

standard needed to obtain the permit in the first place, and Petitioner’s response showed that the address for the Project was already used in the City’s system, appeared on prior permits, and was reflected in the recorded covenant executed with DBS staff. (AR 65-67, 1481; Silver Decl. ¶ 16.) The demolition of the greenhouse is equally irrelevant because it does not concern any performance standard and HCD—not the City—has authority over construction and demolition work within the park under the Special Occupancy Parks Act. (AR 1481-1482, 1500-01504.) HCD verified that Petitioner complied with permitting

requirements. (Ibid.) The side yard, reverse corner, and side yard projection issues also fail because they too are not part of the performance standards. (AR1421-1422 [LAMC § 14.00.A.7].) The RV spaces and unbuilt trash enclosure issues do not relate to any performance standard. (AR 01482-1483, 1713.)

The

City noted two issues that do relate to performance standards. The City claimed that the approved plans failed to demonstrate compliance with the front yard setback, which requires the front yard to be at least as deep as the setback required by the zone. (AR 1384-1385, 1421-422.) However, the City approved the plans before the permit, and the Project contains no structures within 40 feet of the front lot line. (AR35-36, 40-41, 1505-1509; Silver Decl., ¶¶ 17-18, 62, Ex. B.)

The

existing single family house was built decades before the Project and is not part of the RV Park. In the RA zone where the Project is, the code requires a front yard of 20% of the depth of the lot not to exceed 25 feet, and where 40% of the lots have frontage that vary within 10 feet, the setback shall be the average of the setbacks of these lots, and no front yards are required to exceed 40 feet. (LAMC §12.07.C.1) In the RV Park, there are no structures within 40 feet of the front yard lot line; therefore, the RV Park complies with the front yard setback. (AR 1713.)

The

landscape buffer objection is also meritless. The City approved the plans showing the buffer, the dumpster enclosure, and landscaping around the perimeter, including along the public street frontages. (AR 1484, 1776, Silver Decl., ¶¶ 17, 62, Ex. B.) If the City thought it was a true issue, the remedy would be for Petitioner to not build the trash enclosure in the area; not revoke the permit outright. (Silver Decl., ¶ 44.)

In a declaration submitted with the opposition, Hayden Chan identified supposed noncompliance issues on the corrections sheet. (Chan Decl., ¶ 7.) None of the issues Chan identifies are violations of the performance standards: the side yard objection conflates a setback requirement with the landscape buffer of Performance Standard No. 5 (which the Project provides); the fence height issue was a request for “clarification” that was provided; the light pole objection invokes a general zoning provision that is not among the performance standards; the building height issue was resolved;

and the park signage is compliant and has always been approved. (Ross Decl. ¶¶ 4-8.) Chan also demanded an equine keeping checklist for a use that does not exist; Petitioner provided it anyway, mooted the issue. (Ross Decl., ¶¶ 3, 9.) Chan also referenced the need for “clarification” of the project description—but this supposed ambiguity was the City’s own creation because the City revised the project description without Petitioner’s consent. (Ross Decl. ¶¶ 10-15.) Still, Petitioner responded to each item with detailed explanations. The City never replied. (Ross Decl., ¶ 26.)

The later supplemental permit was a result of another substantive concern: the removal of the trash enclosure from the approved plans. (Silver Decl., ¶ 45.) However, the revised plans removed the trash enclosure; there were no other changes to the approved permit. (AR114-115, 129, 1712-1713, 1922; Silver Decl., ¶¶ 45-46.) The City identified no law that allowed it to reopen the entire permit and reassess what it had already approved. Yet the City did exactly that. (Silver Decl., ¶¶ 46-49; AR113-117.)

DBS also relied on the ICO grounds for terminating the permit. This argument is meritless. The ICO did not become effective until October 31, 2025, more than a year after the City issued the permit. (AR 257-264; AR 1443-1244.) Under California law, “[o]nce a landowner has secured a vested right the government may not, by virtue of a change in the zoning laws, prohibit construction authorized by the permit upon which he relied.” (Avco Community Developers, Inc. v. South Coast Regional Com. (1976) 17 Cal.3d 785, 791 [enforcing new ordinance where property owner had expended \$2,300 in reliance on building permits would result in the taking of that property without due process or just compensation].)

A right vests when (1) the developer performs substantial work, spends substantial funds, and/or incurs substantial liabilities; (2) the work is performed, and expenditures incurred pursuant to a valid grant or permit; and (3) the reliance on the grant or permit was in good faith. (Id., at p. 791.)

There is no question that Petitioner has a vested right. Petitioner performed substantial work and made substantial expenditures in good faith pursuant to

the use of the land permit. (Silver Decl., ¶ 22) Petitioner applied for and obtained the use of land permit normally through City processes. (AR 33-36, 41-44, 1340-41, 1546-47; Silver Decl., ¶¶ 14-21.) The City issued the permits. (Id.) Petitioner spent over \$1.3 million constructing the Project in reliance on the permit. (Silver Decl., ¶ 22.) Petitioner commenced construction in January 2025 and completed work by early August 2025. (Silver Decl., ¶¶ 23, 28.)

When

a vested right is obtained, the scope of the vested right “is not governed by municipal ordinances, or policies,” but by “constitutional principles” protecting property rights. (Pardee Construction Co. v. California Coastal Com. (1979) 95 Cal.App.3d 471, 481.) The ICO itself confirms that it does not apply if the application would “result in a taking requiring compensation” or “would deprive any person of constitutional or statutory rights or privileges.” (AR 263.)

In

sum, the City retracted the permit and refused to let the Project go forward. The City took actions contrary to established law. As noted, the City fails to make any merits arguments defending this conduct. There is no discussion about why the project cannot move forward because of address approval, greenhouse demolition, or side yard, reverse corner, and side yard projection issues. There is no discussion of vesting or when work was performed on the project.

In

effect, the City dedicated significant public resources to creating arguments outside of applicable legal principles for why the Project could not go forward. The City also revised the project description without the consent of Petitioners, and failed to engage when Petitioners requested information about the status of the Project. (Silver Decl., ¶¶ 47, 51, 56.) The Court has found the declarations from the City’s witness to be unpersuasive, especially on the question of what information was shared with Petitioner.

C. Exhaustion of Administrative Remedies and Ripeness

The

City contends that Petitioner failed to exhaust its administrative remedies to

challenge DBS's refusal to issue building permits for the Project, and therefore this failure bars the litigation.

Exhaustion of administrative remedies is

"a jurisdictional prerequisite to judicial review." (Cal.

Water Impact Network v. Newhall County Water Dist. (2008) 161 Cal.App.4th

1464, 1489.) "The exhaustion requirement

applies whether relief is sought by traditional (Code Civ. Proc., § 1085)

or administrative (Code Civ. Proc., § 1094.5) mandamus." (Eight Unnamed Physicians v. Medical

Executive Com. (2007) 150 Cal.App.4th 503, 511.) "Before seeking judicial review a party must

show that he has made a full presentation to the administrative agency upon all

issues of the case and at all

prescribed stages of the administrative proceedings." (Edgren

v. Regents of University of California (1984) 158 Cal.App.3d 515, 520.) "The

rule has important benefits: (1) it serves the salutary function of mitigating

damages; (2) it recognizes the quasi-judicial tribunal's expertise; and (3)

it promotes judicial economy by unearthing the relevant evidence and by

providing a record should there be a review of the case." (Campbell v. Regents of

University of California (2005) 35 Cal.4th 311, 322.)

There are, however, exceptions. "The

requirement of exhaustion of administrative remedies does not apply if the

remedy is inadequate." (Glendale City

Employees' Assn. v. City of Glendale (1975) 15 Cal.3d 328, 342.) The exceptions to the doctrine also include

futility: "when the aggrieved party can positively state what the

administrative agency's decision in his particular case would be." (Ogo

Associates v. City of Torrance (1974) 37 Cal.App. 830, 834.)

1.

Petitioner

Does Not Have an Adequate Administrative Remedy

The City contends that Petitioner has a

right to challenge LADBS's "permitting action" in appeals to LADBS and then to

the Board of Building and Safety Commissioners ("BBSC") pursuant to LAMC

sections 98.0403.1 and 98.0403.2.

Section 98.0403.1(b)2 states:

The

Board shall have the power to hear and determine appeals from orders, interpretations, requirements, determinations, or actions of the Department pertaining to enforcement of specific ordinances, regulations, or laws in site-specific cases. These appeals shall state how the Department has erred or abused its discretion in the matter of the appeal.

Here, Petitioner does not contend that DBS erred or abused its discretion in enforcing any specific ordinance, regulation, or law. To the contrary, Petitioner contends that DBS correctly applied LAMC section 14.00.A.7, and correctly determined that the Project complies fully with all applicable standards and is entitled to ministerial approval. Specifically, DBS initially issued permits for the Project. (AR 35-36; 41-42; 1340-1341; 1406; Silver Decl., ¶¶ 8, 18.)

Instead, Petitioner challenges DBS's refusal to issue ministerial building permits at the direction of the City Council and the ICO. (AR149, 232-241, 499, 504-507; see also AR140, 147; Silver Decl., ¶¶ 33, 39, 51, 57, 59.) Sections 98.0403.1 and 98.0403.2 do not provide a remedy to challenge an order from the City Council to "halt" the issuance of ministerial permits, even if the City Council order is not applicable because the Project was vested. Nor do sections 98.0403.1 and 98.0403.2 authorize DBS or the BBSC to order the City Council to rescind its directive. Because Petitioner does not have an adequate remedy in sections 98.0403.1 and 98.0403.2, the exhaustion doctrine does not apply.

The City's argument that the Board can hear appeals from "actions" like this one is unconvincing. The City has not cited any evidence that City staff, specifically DBS, will disobey a directive of the City Council if ordered to do so by BBSC. Thus, even if Petitioner were to pursue an appeal to the BBSC and even if BBSC were to try and override the City Council's orders (which as previous judges have found, seems unlikely), that process would not afford Petitioner the relief it seeks—namely, the issuance of the permits and other approvals.

Finally, the City's approach makes little public policy sense. DBS raised new issues around the permit after the permit was already approved. If Petitioner finally got the permit approved

after going through the administrative remedies process, would DBS then be able to raise new issues and require Petitioner to start the whole process all over again? The administrative remedies process is supposed to be about bringing decisions to a close, not allowing them to drag on indefinitely.

2.

Petitioner

Has Proven the Futility Exception

The futility

exception applies when a “petitioner can positively state that the [agency] has declared what its ruling will be in a particular case” (Sea & Sage Audubon Society, Inc. v. Planning Comm. (1983) 34 Cal.3d 412, 418.) Futility usually presents a question of fact “depending upon the precise nature of the communications from the administrative agency and their applicability to the circumstances of the particular case.” (People ex rel. State Pub. Wks Bd. V. Superior Court (1979) 91 Cal.App.3d 95, 102.) “The law does not require useless acts.” (Tilem v. City of Los Angeles (1983) 142 Cal.App.3d 694, 704.)

Petitioner has

proven that any appeal to LADBS or BBSC would be futile. Here, the City Council adopted the ICO to stop RV parks from being built. DBS has told Petitioner that it will not act because of the ICO. (Silver Decl. ¶¶ 58-59; Ross Decl., ¶ 16.) Moreover, the City Council could override any action of BBSC under Charter Section 245, which it has done in the past to undo decisions that support Petitioner’s projects. (Hinks Decl. ¶ 11, Ex. 14 at 25.) In general, the City’s course of conduct from tprojectdent I litigation, and the parallel conduct here approving but then serially interfering with the current project, demonstrates that administrative appeals would be futile.

D. Petitioner is entitled to relief under the
Housing Accountability Act

In the third

cause of action, Petitioner alleges that “the Project fully complies with all relevant objective zoning standards” and “the City Council’s decision to grant the Amended Motion and direct LADBS to close the permit constitutes a disapproval of a housing development project” in violation of the Housing Accountability Act (“HAA”). (Petition, ¶ 159.) Petitioner seeks a writ of administrative mandate “directing the

City to process Petitioner's suspended applications, approve Petitioner's housing development project and issue the corresponding permits." (Petition, ¶ 162.)

Petitioner

argues that the Project – an RV park – is a "housing development project" within the meaning of the HAA. The City argues that it is not. Neither party cites a case deciding this question of statutory interpretation.

The rules

governing statutory construction are well settled. "We begin with the fundamental premise that the objective of statutory interpretation is to ascertain and effectuate legislative intent. To determine legislative intent, we turn first to the words of the statute, giving them their usual and ordinary meaning. When the language of a statute is clear, we need go no further. However, when the language is susceptible of more than one reasonable interpretation, we look to a variety of extrinsic aids, including the ostensible objects to be achieved, the evils to be remedied, the legislative history, public policy, contemporaneous administrative construction, and the statutory scheme of which the statute is a part." (Nolan v. City of Anaheim (2004) 33 Cal.4th 335, 340, citations omitted.) "A statute must be construed in the context of the entire statutory system of which it is a part, in order to achieve harmony among the parts." (People v. Woodhead (1987) 43 Cal.3d 1002, 1009.)

The HAA prohibits a local government from disapproving a "housing development project" that complies with "applicable, objective general plan, zoning, and subdivision standards and criteria" unless it makes written findings, based upon a preponderance of the evidence, that the project would have a specific, adverse impact on public health or safety that cannot be feasibly mitigated in any way other than rejecting the project or reducing its size. (Gov. Code § 65589.5, subd. (j)(1).) A "housing development project" is defined broadly to include "a use consisting of...[r]esidential units only." (Gov. Code § 65589.5, subd. (h)(2)(A).) The definition of "housing development project" must be broad and must be "interpreted and implemented in a manner to afford the fullest possible weight to the interest of, and the approval and provision, of housing." (Gov't. Code § 65589.5, subd. (a)(2)(L).)

Petitioner argues that the Project qualifies as "residential units." The

HAA does not define “residential units,” and the HAA does not mention “recreational vehicles” anywhere in its text.

The ordinary meaning of “residential” is “used as a residence or by residents” or “of or relating to residence or residences”; and a “residence” is “the place where one actually lives as distinguished from one’s domicile or a place of temporary sojourn” or “a building used as a home.” (See merriam-webster.com.) A “unit,” as relevant, is “a single thing, person, or group that is a constituent of a whole.” (Ibid.) Depending on its configuration and intended use, an RV park could plausibly be considered “residential units.” However, since a recreational vehicle may be driven away from the RV park, it could be viewed as distinct from traditional residential units. Thus, the phrase “residential units” in section 65589.5, subd. (h)(2) is ambiguous as applied to a RV park.

As the City argues, the term “residential unit” appears not only in the HAA’s definition of “housing development project,” but also in the following definition of “unit type” in section 65589.5, subd. (h)(13):

(13) “Unit type” means the form of ownership and the kind of residential unit, including, but not limited to, single-family detached, single-family attached, for-sale, rental, multifamily, townhouse, condominium, apartment, manufactured homes and mobilehomes, factory-built housing, and residential hotel.

(emphasis added.) Because this definition of “unit type” expressly identifies “residential unit” to include structures like manufactured homes and mobilehomes, but omits recreational vehicles or RV parks, it supports the City’s position that the HAA was not intended to apply to RV parks. (See *Sullivan v Stroop* (1990) 496 U.S. 478, 484 [“[I]dentical words used in different parts of the same act are intended to have the same meaning.”].)

Further, in context, the phrase “including, but not limited to” in section 65589.5(h)(13) also supports the City’s position.

[T]he doctrine of *eiusdem generis* ... states that where general

words follow the enumeration of particular classes of persons or things, the general words will be construed as applicable only to persons or things of the same general nature or class as those enumerated. The rule is based on the obvious reason that if the Legislature had intended the general words to be used in their unrestricted sense, it would not have mentioned the particular things or classes of things which would in that event become mere surplusage.

(Peralta

Community College Dist. v. Fair Employment & Housing Com. (1990) 52

Cal.3d 40, 50.) Here, the enumerated

list of “residential units” in section 65589.5, subd. (h)(13) are similar in that they are stationary structures for housing people.

Petitioner argues that the definition of

“unit type” in subsection (h)(13) was added to the HAA in 2024 and applies to

“unrelated parts of the HAA.” These factors are not dispositive. The definition of “unit type” expressly

includes a list of “residential units,” which is the exact statutory term at

issue in this case. The Legislature was

aware of the definition of “housing development units” (which includes

“residential units”) when it added the definition of “unit type” to the

statute. Therefore, the Legislature’s

decision to omit any reference to recreational vehicles or RV parks in

subsection (h)(13), but to include manufactured homes and mobilehomes, supports

the City’s interpretation of the HAA to not apply to RV parks.

The City’s position also finds support in

other statutes, some of which have existed for decades, in which the

Legislature distinguishes between mobilehomes and recreational vehicles. For example, the Mobilehome Parks Act’s

definition of “mobilehome” expressly excludes recreational vehicles. (Health & Safety Code §§ 18008(a),

18211.) Similarly, Civil Code section 798.3

states that “‘Mobilehome’ is a structure designed for human habitation” and

“does not include . . . a recreational vehicle located in a recreational

vehicle park.” (Civil Code § 798.3(a); cf. Civ. Code § 799.29

[definition of “Recreational vehicle”].)[1] In addition, RV parks are regulated

separately from mobilehomes by the Special Occupancy Parks Act and also the

Recreational Vehicle Park Occupancy Law. (See generally, Health & Safety

Code §§18860 et seq.; Civ. Code §§ 799.20 et seq.; and Griffith

v. County of Santa Cruz (2000) 79 Cal.App.4th 1318, 1321-22.) These statutory schemes show that the

Legislature knows the difference between mobilehomes and recreational vehicles,

and it could have easily included RV parks in the list of “residential units” in

section 65589.5, subd. (h)(13) of the HAA.

“Where statutes involving similar issues contain language demonstrating the Legislature knows how to express its intent, the omission of such provision from a similar statute concerning a related subject is significant to show that a different legislative intent existed with reference to the different statutes.” (County of San Diego v. San Diego NORML (2008) 165 Cal.App.4th 798, 825 [internal quotation marks omitted].) “When the legislature has carefully employed a term in one place and has excluded it in another, it should not be implied where excluded.” (Wasatch Property Management v. Degrate (2005) 35 Cal.4th 1111.)

Petitioner argues that the HAA should apply to this case because the Project includes bathrooms, showers, laundry, fencing, landscaping, and an administrative office. (Silver Decl., ¶¶ 10, 11, 15.)

Relatedly, Petitioner argues that public policy suggests the Court should interpret and implement the HAA in a manner that leads to approval and provision of housing. (Gov’t. Code § 65589.5, subd. (a)(2)(L).) “Such rules of liberal construction do not, however, allow [courts] to ignore the statutory language or construe it to accomplish a purpose that does not appear on the face of the statute or from its legislative history.” (Reznitskiy v. County of Marin (2022) 79 Cal.App.5th 1016, 1036 [internal quotation marks omitted].) Furthermore, “statutes must be construed so as to give a reasonable and common-sense construction consistent with the apparent purpose and intention of the lawmakers—a construction that is practical rather than technical, and will lead to wise policy rather than mischief or absurdity.” (Upland Police Officers Assn. v. City of Upland (2003) 111 Cal.App.4th 1294, 1303.)

The Legislature did not intend for the HAA to cover every kind of land use project. It expressly excluded “hotel” and “transient lodging” from the coverage of the HAA. (Gov. Code § 65589.5, subd. (h)(2)(B)(ii)(II) and (h)(2)(B)(iii)(IV).) If “housing development project” is interpreted to include RV parks, then the HAA would also cover campgrounds, parking lots, hotel guest rooms, or similar projects. (See Health & Safety Code § 18862.36 [defining “recreational vehicle park” as an area “to accommodate owners or users of recreational vehicles, camping cabins, or tents”].) It appears unlikely that the Legislature intended this result. In sum, the court finds insufficient evidence in the text of the HAA, its legislative history, and other extrinsic aids to conclude that the Legislature intended to include

RV parks within the scope of the HAA. To the extent Petitioner asserts policy reasons for including RV parks within the scope of the HAA, those are questions for the Legislature. The court cannot expand the reach of the HAA beyond its text.

In light of this conclusion, the court does not reach the parties' remaining contentions related to the HAA.

E. Declaratory Relief

Petitioner's FAP raised a fourth claim – declaratory relief. However, that claim is not discussed at all in the opening papers or the reply (or the City's opposition). Accordingly, Petitioner cannot prevail on the fourth claim.

CONCLUSION

The Court GRANTS the petition for writ of mandate as to the first two claims, but DENIES the petition for writ of mandate as to the third claim and the fourth claim.

Pursuant to Local Rule 3.231, subd. (n), Petitioner shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: June 25,
2026

Joseph
Lipner

Superior
Court Judge

[1] (But see Civ. Code § 798.3(b)(2) [mobilehome includes a recreational vehicle that “occupies a

mobilehome site in the park for nine or more continuous months commencing on or after November 15, 1992"].)